

23STLC08086 23STLC08086

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 23STLC08086 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE RULING:

Defendants Janet Nazarian and AB Inspections' Motion to Set Aside Default and Default Judgment is denied.

Analysis:

On December 20, 2023, Plaintiff Gilberto Soto ("Plaintiff") filed the Complaint in this action for breach of contract against Defendants Janet Nazarian and AB Inspections ("Defendants"). Trial was set for June 18, 2025. Defendants filed a Demurrer to the Complaint on February 29, 2024. On April 23, 2024, the Court sustained the Demurrer to the Complaint with 30 days' leave to amend. (Minute Order, 04/23/24.)

Plaintiff substituted in new counsel on June 12, 2024 and filed the First Amended Complaint on June 18, 2024. Plaintiff's name in the First Amended Complaint changed from "Gilberto Soto" to "Gilberto Soto, doing business as Soto Ready Mix, Inc., a California Corporation" and it added a cause of action for fraud. (FAC, filed 06/18/24, p. 1.) Summons with respect to the First Amended Complaint was not filed until April 22, 2025; Proofs of Personal Service with respect to the Summons and Complaint were filed for both Defendants on May 23, 2025.

Following the lack of any response to the First Amended Complaint by Defendants, the Court entered their default on May 30, 2025. Default judgment was then entered on July 21, 2025 in favor of "Gilberto Soto". In September 2025, Plaintiff substituted out counsel to become self-represented

and then assigned the judgment to Brenda E. Vargas c/o Rapid Lien Recovery. (Assignment of Judgment, 09/24/25, pp. 1-3.) The Assignment of Judgment was served directly to Defendants, instead of to their counsel, Eugene W. Matthews, Esq. (Id. at p. 4.)

On May 19, 2026, Defendants filed the instant Motion to Set Aside Default and Default Judgment, which they served upon Gilbert Soto by first class mail on the same day. No opposition has been filed to date.

Discussion

As a threshold matter, the Court notes that Defendants did not serve the Motion and Notice of Hearing upon the correct party, Judgment Assignee, Brenda E. Vargas. On September 17, 2025, the right to collect and enforce the judgment in this case was assigned to Brenda E. Vargas. (Acknowledgment of Assignment of Judgment, 09/24/25.) The Proof of Service attached to the Motion shows service only on the Assignee, Gilberto Soto. Failure to give notice of a motion is not only a violation of the statutory requirements but of due process. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) The Motion cannot be granted in light of the lack of proper notice.

Furthermore, however, the Motion cites as the only basis for relief Code of Civil Procedure section 473, subdivision (b). (See Mot. at 1, 5.) Motions under that provision are subject to an outer six-month deadline which is jurisdictional and not subject to tolling. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) Because section 473(b) is the only basis raised for relief and it is necessarily time-barred, the Court denies the Motion without any continuance for service. Relief from the entry of default and default judgment is not available to Defendants under section 473, subdivision (b).

Conclusion

Defendants Janet Nazarian and AB Inspections' Motion to Set Aside Default and Default Judgment is denied.

Moving party to give notice.